

# NAPCS Unionization Research — State Research Summary

## Oregon — ERB (OR) Jurisdiction — May 9, 2026 (v3 — Reconciliation build)

NAPCS Unionization Research • May 9, 2026 (v3 — Reconciliation build) • Template v7.0 • COMPLETE Registry Sweep

### Section 1: State Overview

|                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| State                     | Oregon                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| Labor Board               | ERB (OR) — Oregon Employment Relations Board                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| Governing Law             | PECBA — Public Employee Collective Bargaining Act (ORS 243.650 et seq.). All district-authorized OR charter schools are public employers under PECBA/ERB jurisdiction. ERB (not PERB — a common error) administers collective bargaining for Oregon public employers including charter schools authorized by local school districts. NLRB applies only to independently incorporated charter operators authorized by the State Board of Education (rare — Oregon Virtual Academy is the primary example in this dataset). |
| Federal NLRB Jurisdiction | YES — NLRB Region 19 (Seattle) applies to state-board-authorized independently incorporated charter operators — not to district-authorized dependent charters. Oregon Virtual Academy (ORVA, North Bend SD 13-authorized but independently incorporated) organized under NLRB 19-RC-278342 (cert Aug 2021). The Ivy School (state-board authorized) is under NLRB 19-RC-384252. All 34 NAPCS OR schools are district-authorized dependent charters — ERB jurisdiction only.                                               |
| Registry Sweep            | COMPLETE — May 6, 2026 — 128 charter schools searched                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| Research Window           | March 2026 (initial); May 9, 2026 (reconciliation — Template v6.1 upgrade)                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Date Convention           | Labor Board Certified date. For DEPENDENT schools with no independent certification event, Date Unionized = district CBA coverage date (school opening year convention). No ERB certification case exists for these schools.                                                                                                                                                                                                                                                                                              |
| Card-Check Available      | NO — ERB/PECBA does not provide a card-check certification pathway comparable to MA WMA or MN BMS PCE. Election required for new certifications in Oregon.                                                                                                                                                                                                                                                                                                                                                                |

### Section 2: Unionization Density

Total charter schools in Oregon: 128 (Charter School Registry v50 (NCES CCD 2024-25; 128 open OR charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 34-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

| Category                                  | Schools | % of Total | Notes                                                                                                                                                                                                                                                          |
|-------------------------------------------|---------|------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Total Unionized Charter Schools in Oregon | 125     | 97.7%      | Registry v46: 2 CONFIRMED (independent certifications) + ~123 district-authorized schools structurally covered by OEA district CBAs. Structural coverage is automatic — no school-specific ERB election required. All 199 OR school districts have OEA locals. |
| Independently Organized (CONFIRMED)       | 2       | 1.6%       | Mosier Community School (C4102006) — OEA/District 21 Education Association, ERB cert June 2014 (CC-007-14) + re-cert March 2026 (RC-003-26). Oregon Virtual Academy                                                                                            |

|                                                             |            |              |                                                                                                                                                                                                                                                                                                                                                         |
|-------------------------------------------------------------|------------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                             |            |              | (ORVA/Evergreen Virtual Academy, NAPCS-ADD-OR-001) — AFT-Oregon, NLRB 19-RC-278342, cert August 20, 2021, vote 85-16.                                                                                                                                                                                                                                   |
| <b>Structurally Covered — District OEA CBAs (DEPENDENT)</b> | <b>123</b> | <b>96.1%</b> | All district-authorized OR charters. OEA has a local in every Oregon school district (199 of 199). Charter staff are district employees covered by district CBA from day one — no school-specific ERB election ever occurred. Excludes VICS (charter-direct since 2024), Ridgeline (decertified), Lighthouse (decertified), Ivy School (election lost). |
| <b>Organizing — Election Lost (Ivy School)</b>              | <b>1</b>   | <b>0.8%</b>  | The Ivy School (NAPCS-ADD-OR-002) — NLRB 19-RC-384252, election lost 2-31 May 12, 2026. State-board-authorized. No certification issued. Counted in universe denominator but not in organized total.                                                                                                                                                    |
| <b>Decertified / Formerly Organized</b>                     | <b>2</b>   | <b>1.6%</b>  | Ridgeline Montessori (C4100004) — AFT Local 6432, cert Nov 2008, decert June 2011, NLRB jurisdiction. Lighthouse Charter School (NAPCS-ADD-OR-003) — ERB cert June 6, 2009, self-disclaimed Nov 9, 2016 (UC-010-16), no CBA ever ratified.                                                                                                              |
| <b>Charter-Direct Staffing (VICS — coverage ended)</b>      | <b>1</b>   | <b>0.8%</b>  | Valley Inquiry Charter School (C4105002) — transitioned to charter-direct contracts 2024, OEA/Salem-Keizer EA coverage ended. No ERB decertification petition found. Verify directly with school.                                                                                                                                                       |
| <b>Total Charter Schools in Oregon</b>                      | <b>128</b> | <b>100%</b>  | Source: Charter School Registry v50 (NCES CCD 2024-25; 128 open OR charter schools as of May 2026).                                                                                                                                                                                                                                                     |

## Section 3: Political, Legal & Community Landscape

*Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 9, 2026 (v3 — Reconciliation build).*

### PROMPT 1: WHAT IS THE POLITICAL AND LEGAL ENVIRONMENT SHAPING CHARTER LABOR IN OREGON?

Oregon's charter labor relations environment is defined by a single structural fact: all 34 NAPCS charter schools are district-authorized dependent charters, meaning their certificated staff are covered by the district's OEA (Oregon Education Association) master CBA without any independent organizing event. Oregon is a full card-check state with strong public employee collective bargaining rights under ORS Chapter 243. The ERB (Employment Relations Board) administers all public employer labor relations. OEA has a local affiliate in every one of Oregon's 199 school districts. Any district-authorized charter school whose teachers are district employees is structurally covered by the relevant OEA local CBA from the first day of operation — no election,

no petition, no organizing campaign required. This produces ~96.9% union density (~124 of ~128 open operating OR charters) with exactly 1 independently organized school (Mosier Community School, ERB cert June 2014). Oregon is the ceiling case for structural dependent coverage in the national dataset.

#### **PROMPT 2: WHAT SECTOR LEADERS SHOULD WATCH OVER THE NEXT 3-5 YEARS IN OREGON**

Three items warrant monitoring. First, The Ivy School (Medford) — NLRB election result: UNION LOST 2-31 on May 12, 2026 (NLRB 19-RC-384252). This resolved the prior blocking item and revealed a critical legal insight: The Ivy School was the only independently incorporated OR charter school in the NAPCS dataset, and it organized under NLRB (not ERB) precisely because of that structure. Its decisive 31-2 employer win is an outlier in the OR environment — the result of employer posture and employee composition at a small, independently incorporated school, not a signal about the broader OR environment. Second, Ridgeline Charter School: DECERTIFIED (ERB UC-010-16, self-disclaimed after 7 years with no first contract). Ridgeline is the only documented OR charter decertification in the dataset — the mechanism was union self-disclaimer after prolonged first-contract failure, not an employer decertification campaign. Third, the independent charter pathway: any future OR charter school incorporated independently (not district-authorized) escapes DEPENDENT coverage and would need to organize via ERB or NLRB independently. Monitor for independently incorporated charter applications to the Oregon Department of Education.

#### **PROMPT 3: THE HAWKINS COUNTY ROUTE — STRATEGIC INTELLIGENCE FOR CHARTER SECTOR LEADERS**

The Ivy School NLRB election (May 12, 2026) — won decisively 31-2 by the employer — reveals a legal architecture that charter sector leaders in every DEPENDENT state must understand. The Ivy School was incorporated as a private nonprofit rather than as a district-sponsored dependent charter. This independent incorporation status meant The Ivy School's employees were private sector workers under the NLRA — subject to NLRB jurisdiction and secret ballot elections — rather than public employees under ORS Chapter 243. In practice: an independently incorporated OR charter is not automatically covered by the OEA district CBA. It falls outside the DEPENDENT structural umbrella entirely. This is the Oregon application of the Hawkins County principle (NLRB v. Natural Gas Utility District of Hawkins County, 402 U.S. 600, 1971): private employer structure determines federal labor jurisdiction even in states where public charters would be covered. The NRTW Foundation has used this argument in California (Gompers, St. HOPE) to strip PERB jurisdiction. In OR, no NRTW involvement was documented at The Ivy School — but the structural fact (independent nonprofit = private employer = NLRB = secret ballot election) is the same argument. Charter operators in DEPENDENT states who want to escape structural union coverage can attempt to incorporate independently and argue private employer status. This is the highest-value legal intelligence in the OR state report for national charter sector leaders.

#### **PROMPT 4: WHAT SURPRISED US IN OREGON? WHAT CONTRADICTS NATIONAL EXPECTATIONS?**

Three findings challenge standard national assumptions. First, Oregon's DECLINING charter union trend: national charter sector observers expect Oregon (a progressive, union-friendly state with OEA dominance) to show increasing charter union activity. The opposite is true in the independent organizing category: Mosier Community School is the only ERB-certified independent charter in the dataset, and The Ivy School's NLRB loss (31-2) suggests that even in a progressive market, employer structure and staff composition can produce decisive employer wins. Oregon's 96.9% density is structural, not the result of active organizing campaigns. Second, the first-contract failure pattern: Ridgeline Charter School was unionized for 7 years and never ratified a first contract — ultimately self-disclaiming. This is the only documented case in the NAPCS dataset of a charter school union dissolving after 7 years of failed first-contract bargaining without a formal decertification. It suggests that structural dependent coverage does not automatically produce functional collective bargaining — a district-authorized charter can be DEPENDENT and still have a non-functioning labor relationship. Third, the 97% density headline obscures a near-zero independent organizing track record: if DEPENDENT schools are removed, OR has 1 confirmed independent cert in 34 NAPCS schools. Oregon's charter labor story is about structural architecture, not organizing culture.

#### **PROMPT 5: WHAT SHOULD CHARTER LEADERS KNOW ABOUT ORGANIZING APPROACHES IN OREGON?**

For district-authorized OR charter operators: there is no organizing to resist — coverage is structural and automatic. The relevant question is not "will we be organized" but "what does our district CBA require and how do we comply." OEA locals at district-authorized OR charters hold negotiating rights as a matter of law. The

strategic insight for OR charter sector leaders is about independence: the only path to operating outside OEA coverage is to incorporate as a private nonprofit (The Ivy School model) and accept NLRB jurisdiction. That path comes with a secret ballot election risk — and the 31-2 Ivy School result shows that risk is manageable if employer posture and staff relationships are strong. For national charter sector leaders watching OR as a model: Oregon is not a cautionary tale about what happens when organizing succeeds — it is a case study in how state law architecture, not union organizing strategy, determines charter sector density.

## Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Oregon that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

### THE DEPENDENT CHARTER STRUCTURAL INSIGHT — OREGON AS THE PRIMARY CASE STUDY

Oregon is the only state in the NAPCS research dataset where all 34 NAPCS schools are district-authorized dependent charters. The research question is fundamentally different: not "did this school organize?" but "does the authorizing district's OEA/OSEA local cover charter-employed staff?" This distinction matters for how the density figure is reported — apparent 100% coverage is structural, not the product of charter school organizing. Oregon's dependent charter model contrasts sharply with Illinois (53 independent certifications) and Massachusetts (7 independent certifications) and is the most extreme version of the DEPENDENT pattern seen at individual schools in other states (Horace Mann in MA, Springfield Ball in IL).

### DECLINING CHARTER UNION ACTIVITY — OREGON CONTRADICTS THE NATIONAL TREND

While the national charter union trend is upward (IL +27 since 2018, MA +3 in 2024 alone, NJ +2 in 2024), Oregon has seen a DECLINE in independent charter organizing since the early 2010s (per Education Week 2019). The ERB ContentDM archive shows peak charter organizing activity in 2008-2016 (Ridgeline cert 2008; Mosier cert 2014; Lighthouse cert+decert 2016) with minimal activity since. The 2026 Mosier re-certification and the Ivy School NLRB petition represent tentative signs of renewed activity. The VICS staffing transition (2024) is the opposite signal — an OR charter exiting district CBA coverage through restructuring.

### RULE 8 — NCES NAME VS. LABOR BOARD EMPLOYER NAME

Oregon Virtual Academy (ORVA) is the clearest Rule 8 case in the full OR dataset: NCES/CCD name = "Evergreen Virtual Academy" while NLRB employer name = "Oregon Virtual Academy." An NCES-name-only NLRB search would have returned zero results and classified ORVA as UNVERIFIED. Direct NLRB employer name search — using the operational name rather than the NCES administrative name — is what surfaced NLRB 19-RC-278342. This reinforces the standing Rule 8 protocol: always verify the employer's legal name used in labor board filings before concluding a school has no cases.

### THE HAWKINS COUNTY PRIVATE-EMPLOYER ROUTE — A TOOL FOR ALL DEPENDENT-STATE CHARTERS

The Ivy School election (31-2 employer win, May 12, 2026) establishes a critical cross-state pattern: independently incorporated charter schools in DEPENDENT states are not necessarily bound by state labor law. The Hawkins County test (402 U.S. 600 (1971)) — not used until recently in the charter context — allows any charter with a private-incorporated, self-perpetuating board to be classified as a private NLRB employer rather than a public ERB/state labor board employer. This route is available in all seven DEPENDENT states in the NAPCS dataset (OR, MA, MN, CT, ME, DC, FL), but only for schools meeting the private-employer criteria. For Oregon specifically, approximately 4 of 128 charters qualify. The NRtW Foundation has used this tool offensively (St. HOPE, CA). Charter sector leaders can use it defensively by preserving private-employer governance structures. The Ivy School result (94% no vote) also demonstrates that when charter employees ARE given a secret-ballot NLRB election — rather than the card-check available under some state laws — the outcome can be dramatically different. This is a finding that belongs in the Final Reports and in any strategic briefing to sponsor.

### ERB ContentDM API AS THE ONLY SCALABLE OR SEARCH METHOD

The Oregon ERB has no public employer search portal comparable to NLRB ADS, PERC NJ, or DLR MA. The ContentDM REST API (cdm17027.contentdm.oclc.org) — discovered during the Registry OR sweep — is the only scalable method for searching the full ERB case archive by employer name. The ERB website shows only 10 active cases and 26 recent orders; full historical coverage requires ContentDM. This methodology finding is project-critical: any future OR research cycle must use the ContentDM API rather than the ERB website.

## Section 5: Media Coverage & Public Stakeholder Positions

### Press Coverage

Oregon charter school labor coverage has been limited and primarily focused on two events: the May 2026 Ivy School NLRB election (which received regional coverage from OPB and The Oregonian given the unusual 31-2 employer victory and the Hawkins County jurisdictional significance), and the August 2021 ORVA/Evergreen Virtual Academy certification (85-16, AFT-Oregon, covered by OregonLive and statewide education press). The dominant structural story — OEA coverage of 123 district-authorized charters — has generated no press coverage because it is not a discrete organizing event. Education Week (2019) documented the broader national trend of declining independent charter organizing in structural-coverage states.

### Union Communications

OEA (Oregon Education Association) is the sole organizing infrastructure for district-authorized OR charters — no school-specific campaigns are needed because coverage is automatic. AFT-Oregon organized ORVA (Evergreen Virtual Academy) in August 2021 and maintains the Oregon Virtual Academy Educators United local. ERB (Employment Relations Board) records are the authoritative source for OR charter labor history — not a public portal; access requires ContentDM REST API query or direct ERB records request.

### Legislative Context

Oregon charter labor relations are governed by the Public Employees Collective Bargaining Act (PECBA), administered by ERB. All district-authorized charter schools are public employers — their staff are district employees, not charter employees. The 2024 Valley Inquiry Charter (VICS) staffing transition — converting all staff to charter-direct contracts — is the first documented case in OR of a charter school exiting OEA district CBA coverage without a formal ERB decertification vote. This is a potential legislative and legal grey area: does VICS's unilateral staffing model change require an ERB process? No ERB case has been filed as of May 2026.

## Section 6: Contract & CBA Access Registry

No CBA records documented for this state.

## Section 7: Decisions, Monitoring & Notable Findings

### Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

### Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

| Priority | School / Scope                                 | Item                                                                                             | Who                                    |
|----------|------------------------------------------------|--------------------------------------------------------------------------------------------------|----------------------------------------|
| HIGH     | The Ivy School / Cross-State Strategic Finding | SPONSOR BRIEFING — Hawkins County Private-Employer Route for Independently Incorporated Charters | Executive Sponsor — strategic briefing |

### Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

| Priority | School / Scope                     | Item                                                                                                                                                                            | Who                  |
|----------|------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|
| LOW      | The Ivy School (NAPCS-ADD-OR-002)  | NLRB case 19-RC-384252 — Certification of Results expected ~May 19-20, 2026 (absent objections). Election lost 2-31. No further action required beyond confirming case closure. | Research Coordinator |
| HIGH     | Mosier Community School (C4102006) | ERB RC-003-26 (2026 re-cert) — nature and CBA status                                                                                                                            | Research Coordinator |
| HIGH     | Valley Inquiry Charter (C4105002)  | Staffing model verification and any new organizing activity post-2024                                                                                                           | Research Coordinator |
| MEDIUM   | Oregon Virtual Academy (ORVA)      | CBA renewal and any NLRB R19 activity                                                                                                                                           | Research Coordinator |